

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

COMPLAINANT’S MOTION FOR PROTECTIVE ORDER

Complainant FormuKleen, Inc. (“FormuKleen”), by and through its Representative, moves for entry of a Protective Order governing discovery in this proceeding.

Introduction and Relief Requested

Complainant discovery document production will require exchange of materials that include confidential business information, non-party commercial data, bank and payment records, negotiated pricing and duty/fee details, internal communications, and personally identifying information. To protect the confidentiality of sensitive commercial and third-party information and to streamline discovery and production, FormuKleen requests entry of the attached Protective Order.

Legal Basis

The Commission may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense, including measures such as forbidding disclosure, limiting scope, prescribing alternate methods, and, critically here, “requiring that

a trade secret or other confidential ... commercial information not be disclosed or be disclosed only in a specified way.” 46 C.F.R. § 502.141(j)(1)(i)–(viii). See also 46 C.F.R. § 502.5.

Good Cause

Good cause exists because discovery encompasses, among other things:

1. **Confidential commercial and financial information** (rates, storage/duty advances, A/R ledgers, vendor invoices, bank confirmations, payment images).
2. **Non-party proprietary data and communications** (carriers, terminals, drayage vendors, brokers).
3. **Operational systems content** (WMS/TMS/CRM notes, internal policies/SOPs, portal screenshots and logs).
4. **Personal data** (names, emails, phone numbers, account identifiers).
5. **Supplier/manufacturer identities and sourcing data.** Shipping documents (bills of lading, commercial invoices, POs) often reveal supplier/manufacturer names, product descriptions/HTS codes, volumes, Incoterms, and plant locations. Public disclosure enables competitors or counterparties to circumvent and poach suppliers and undercut negotiated terms. Protective relief under 46 C.F.R. § 502.141(j)(1)(vii) is essential to prevent that misuse.

Duty to Confer

Pursuant to 46 C.F.R. § 502.71(a), Complainant conferred in good faith with Respondent regarding proceeding jointly on a protective order (July 29-August 1, 2025, and again on September 16,

2025). Respondent did not agree in principle to proceed jointly. Complainant therefore treats this motion as opposed.

Requested Relief

FormuKleen respectfully requests that the Commission:

1. Grant this Motion;
2. Enter the attached Protective Order; and
3. Direct the parties to proceed with discovery consistent with that Order.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature: 

Date: 09/17/2025

CERTIFICATE OF SERVICE

I certify that on September 17th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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